

Krishna Enterprises v. Madhyanchal Electricity Distribution Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 1 August 2022 · Writ-C No. 4839 of 2022 ·
Writ disposed with liberty to seek clause 6.14 instalments

HEADNOTE

Where the consumer admits electricity dues and the dispute would require evidence, Article 226 will not quash the recovery certificate or direct a 20 per cent deposit and restoration of supply. The petition was disposed of with liberty to seek monthly instalments under paragraph 6.14 of the Electricity Supply Code, 2005, from the Executive Engineer, Deputy General Manager or General Manager (a maximum of two, three or four instalments respectively), or any other forum permissible in law, such recourse to be considered and decided expeditiously.

FACTUAL SUMMARY

M/s Krishna Enterprises of Unnao, through its proprietor Pawan Kumar Shukla, petitioned the Lucknow Bench against the Managing Director of Madhyanchal Electricity Distribution Corporation Ltd. and others. A recovery certificate dated 18 July 2022 had been issued for electricity dues. The firm asked that the certificate be quashed, that the respondents accept 20 per cent of the total amount due, and that the electricity connection be restored. The petitioner admitted the outstanding liability.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

monthly instalments of admitted electricity dues

HOLDING

A writ under Article 226 will not quash a recovery certificate or direct acceptance of 20 per cent of admitted electricity dues and restoration of supply where the dispute requires evidence. Paragraph 6.14 of the Electricity Supply Code, 2005 permits the Executive Engineer, the Deputy General Manager and the General Manager to grant, at the maximum, two, three or four monthly instalments respectively. The consumer may approach that authority or any other permissible forum, and the recourse is to be considered and decided expeditiously. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The consumer, who admitted the dues, was left to paragraph 6.14, under which the Executive Engineer, Deputy General Manager and General Manager may grant up to two, three or four monthly instalments respectively, instead of the Court directing a 20 per cent deposit and restoration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 18 JULY 2022 SHOULD BE QUASHED, AND WHETHER MONTHLY INSTALMENTS AND RESTORATION OF SUPPLY SHOULD BE GRANTED

Left to the authority under paragraph 6.14, or any other forum permissible in law, to consider and decide expeditiously.

¶ 1